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ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
06/06/2025
Clerk of the Court
BY: DAEJA ROGERS
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

GREGORIO GARCIA, Plaintiff, vs. GENERAL MOTORS LLC, a Delaware Limited Liability Company; and DOES 1 through 20, inclusive, Defendants.	**Case No. CGC24614473** Date: June 11, 2025 Time: 11:00 A.M. Dept.: 301 Action Filed: May 8, 2024 Trial Date: September 15, 2025 **DEFENDANT GENERAL MOTORS LLC'S EX PARTE APPLICATION TO CONTINUE DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMARY ADJUDICATION; DECLARATION OF CAMERON MAJOR** *Filed concurrently with*: **[Proposed] Order**

TO THE PARTIES AND THEIR ATTORNEY OF RECORD:

PLEASE TAKE NOTICE that on June 11, 2025, at 11:00 A.M., or as soon thereafter as the matter may be heard in Department 301 of the above-entitled court, Defendant, General Motors LLC ("GM") will move this Court via *ex parte* application to continue its Motion for Summary Judgment or, alternatively, for Summary Adjudication ("MSJ/MSA") currently set for July 9, 2025

at 9:00 A.M.

GM timely filed and electronically served its MSJ/MSA on May 5, 2025, 133 days before trial is set to commence on September 15, 2025. (See Code of Civil Procedure section 437c(a).) GM's MSJ/MSA provided sufficient time before trial to have it heard with a full 83-day notice period (including two extra days for e-service per CCP § 1010.6(a)(3)(B)) before trial on September 15, 2025, and it accounted for it to be heard 30 days before the instant trial date, but for the Court's congested calendar. Due to a calendaring error, the MSJ/MSA was scheduled on a date insufficiently distant from the date of filing so as to give Plaintiff adequate notice. GM has a meritorious MSJ/A under *Rodriguez v. FCA US, LLC*, S274625. WL 4631069 (Oct. 31, 2024).

GM requests that its MSJ/MSA be continued by the Court so that GM's timely filed motion may be heard prior to trial and with sufficient time for Plaintiff to respond given the initial date of notice of the MSJ/MSA. GM will be irreparably harmed by not having its MSJ/MSA heard prior to trial if the relief requested is not granted. I have attached a copy of GM's meritorious MSJ/A to the accompanying declaration for the Court.

Ex parte notice was provided to Plaintiff's counsel on June 6, 2025, at 4:11 P.M. (Declaration of Cameron Major, ¶ 8). Exigent circumstances exist as trial in this matter is approaching and GM will be irreparably harmed if the relief sought is not granted so that GM's MSJ/MSA may be heard to potentially dismiss all pending causes of action.

This Motion is based upon this Notice, the good cause shown for granting the relief requested as set forth in the attached Memorandum, the Declaration of Cameron Major, as well as such evidence, oral and documentary, as may be presented at the hearing.

DATED: June 6, 2025

ERSKINE LAW GROUP, PC

CAMERON MAJOR, Esq.
Attorney for Defendant,
GENERAL MOTORS LLC

I. INTRODUCTION AND STATEMENT OF RELEVANT FACTS

This case is a "lemon law" action arising out of Plaintiff GREGORIO GARCIA's ("Plaintiff") purchase of a USED model year 2019 GMC Sierra, VIN: 1GTU9BEDXKZ361894 ("Subject Vehicle") on August 25, 2023. Plaintiff sued GM in May 2024, and currently trial is set for September 15, 2025. General Motors LLC ("GM") has a meritorious motion for summary judgment ("MSJ") or, alternatively, motion for summary adjudication ("MSA") due to the California Supreme Court's (i.e. *Rodriguez v. FCA*) ruling regarding the Song-Beverly Act excluding used vehicles from relief under the Act. Further, this court has broad discretion regarding the management calendar and would benefit if the MSJ/MSA was continued allowing a means by which it can clear its calendar of cases which no longer have merit, without expending the resources required of a jury trial on these meritless Song-Beverly causes of action.

Defendant requests that the court continue the MSJ/MSA date to allow for Defendant's motion to be heard before trial commences. Exigent circumstances exist as trial in this matter is approaching and GM will be irreparably harmed if the relief sought is not granted to allow GM's MSJ/MSA to be heard.

II. FACTUAL AND PROCEDURAL HISTORY

Plaintiff filed their Complaint against GM under California's Song-Beverly Consumer Warranty Act alleging causes of action for breach of express and implied warranty, on May 8, 2024. GM has a meritorious MSJ/MSA due to the fact that the subject vehicle in this case was purchased used. After its review of the case and conclusion that GM did not issue a new car warranty when Plaintiff purchased their used vehicle, GM filed its MSJ/MSA on May 5, 2025, which was timely filed and served pursuant to CCP § 437c(a).

Since Plaintiff filed their case, the California Supreme Court's decision in *Rodriguez v. FCA* makes Song Beverly relief unavailable to Plaintiff on the basis that the vehicle was purchased used without any additional warranty coverage at the time of the used purchase; and therefore, Plaintiff cannot claim protection under the Song-Beverly Consumer Warranty Act. (*Rodriguez v. FCA US, LLC*, S274625. WL 4631069 (Oct. 31, 2024)). Plaintiff only sought relief pursuant to the Song-Beverly Warranty Act. Therefore, the Complaint now fails as a matter of fact and law.

III. ARGUMENT

a. ***This Court Has Broad Powers to Control the Conduct of Judicial Proceedings in Furtherance of Justice.***

Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances. (See, e.g., Gov. Code, § 68607 [judge has responsibility to manage litigation]; Code Civ. Proc., § 128, subd. (a)(5) [judge has power to control conduct of judicial proceeding in furtherance of justice].) According to Code of Civil Procedure, section 128, subdivision (a)(8), every court shall have the power to "amend and control its process and orders so as to make them conform to law and justice." Code of Civil Procedure, section 187 provides "When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code." Government Code, section 68070 provides that: "Every court may make rules for its own government ... not inconsistent with law or with the rules adopted and prescribed by the Judicial Council."

GM is simply requesting that this Court employ its inherent and broad powers to control the course of the instant matter in furtherance of justice and judicial economy.

Based on the foregoing, GM respectfully requests the court continue the MSJ/MSA to allow for GM's MSJ/A to be heard on regular calendar in advance of the trial date.

b. ***California Supreme Court decision warrants summary judgment/adjudication in this case***

The California Supreme Court's recent holding in Rodriguez v. FCA US LLC is dispositive of Plaintiff's causes of action for breach of express and implied warranty. (*Rodriguez v. FCA US, LLC*, S274625. WL 4631069 (Oct. 31, 2024). In Rodriguez, the plaintiffs purchased a used vehicle with an unexpired express warranty. (Id. at *1-About a year after their purchase, the plaintiffs experienced an engine issue that the manufacturer, Chrysler, was allegedly unable to repair within a reasonable number of attempts, and thus initiated a lawsuit under the Song-Beverly Act. (Id.)

Chrysler moved for summary judgment on plaintiffs' Song-Beverly claims, arguing that Song-Beverly did not apply because (1) the plaintiffs bought the vehicle used and (2) Chrysler did not issue a warranty in connection with plaintiffs' purchase. The trial court agreed, and the Court of Appeals affirmed summary judgment for Chrysler:

> The sole issue in this case is whether the phrase "other motor vehicle sold with a manufacturer's new car warranty" covers sales of previously owned vehicles with some balance remaining on the manufacturer's express warranty. We conclude it does not and that the phrase functions instead as a catchall for sales of essentially new vehicles where the applicable warranty was issued with the sale. We therefore affirm.

Id. at *1. (Emphasis in original.)

Here, as in *Rodriguez*, Plaintiff does not allege facts demonstrating that they purchased a "new motor vehicle" with a "new car warranty" within the meaning of Song-Beverly. At most, they purchased a used vehicle with the remaining balance of GM's original New Vehicle Limited Warranty. *As Rodriguez* confirms, however, this is not enough. Rodriguez, 2022 WL 1042907, at *8 ("Having examined the statutory provision, its place within the Act as a whole, and its legislative history, we conclude the phrase 'other motor vehicles sold with a manufacturer's new car warranty' refers to cars sold with a full warranty, not to previously sold cars accompanied by some balance of the original warranty. We therefore conclude the trial judge was correct to conclude Plaintiffs' truck does not meet the definition of a 'new motor vehicle' and to dismiss their claim against FCA as a result."). This is fatal to Plaintiff's breach of express warranty claims. See id. at *4 (affirming summary judgment on plaintiffs' breach of express warranty claim because plaintiffs' used vehicle, which only had a balance remaining on an express warranty from the manufacturer, did not constitute a new motor vehicle within the meaning of the Song-Beverly Act).

Based on the foregoing analysis, once presented with GM's MSJ/MSA, this Court will have the opportunity to fully dispose of Plaintiff's Song-Beverly causes of action as a matter of fact and law, while avoiding a costly jury trial and the burden that such a trial imposes on the Court. It is in the interests of judicial economy that this motion be heard before trial is set to commence. GM would request the court continue Defendant's timely filed MSJ/MSA to a date on the court's regular

calendar before trial, so that the MSJ/MSA may be heard before trial.

c. ***Sentry Ins. Co. v. Superior Court Mandates that Timely MSJ/As be Heard***

The California Court of Appeals has affirmatively held that a timely MSJ or MSA must be heard notwithstanding a trial Court's busy calendar. In Sentry Ins. Co. ("Sentry") the Defendant was still within the time limits specified by Code of Civil Procedure Section 437c for filing an MSJ or MSA. (See Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526, 528). Due to the Court's congested law and motion calendar, however, the Defendant's MSJ could not be heard until less than 30 days before trial. (Id). The Defendant then moved the trial Court to either hear the MSJ on shortened time (i.e. within 30 days of trial) or to continue the trial date. (Id). That Motion was denied, and the Defendant appealed. (Id. at 528-29).

The Court of appeals reversed, and held it was an abuse of discretion to deny the Defendant's Application. In doing so the Court of Appeals stated. "A trial court may not refuse to hear a summary judgment motion filed within the time limits of section 437c. Local rules and practices may not be applied so as to prevent the filing and hearing of such a motion." (Id. at 529). The Court then went on to say "We are sympathetic to the problems the trial courts experience in calendaring and hearing the many motions for summary judgment. However, the solution to these problems cannot rest in a refusal to hear timely motions." (Id. at 530). A trial court may not refuse to hear a summary judgment or adjudication motion filed within the time limits of section 437 C (Wells Fargo Bank v. Superior Court (1989)).

IV. CONCLUSION

Based on all of the foregoing, GM respectfully requests to continue Defendant's MSJ/MSA motion, to allow for Defendant's timely filed MSJ/MSA under *Rodriguez* to be heard before trial in this matter.

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DATED: June 6, 2025

ERSKINE LAW GROUP, PC

CAMERON MAJOR, Esq.
Attorney for Defendant,
GENERAL MOTORS LLC

DECLARATION OF CAMERON MAJOR

I, Cameron Major, declare as follows:

1. I am an attorney duly admitted to practice before all courts in the State of California. I am an attorney with the law firm Erskine Law Group, counsel to Defendant General Motors LLC ("GM"). I have familiarized myself with the facts set forth herein and, if called to testify, could and would competently testify thereto.

2. This is a lemon law case involving alleged violations of the Song-Beverly Act arising out of Plaintiff's purchase of a USED 2019 GMC Sierra, VIN 1GTU9BEDXKZ361894 ("Subject Vehicle"). Attached hereto as **Exhibit A** is a copy of GM's MSJ/A Memorandum of Points and Authorities previously filed.

3. GM timely filed and electronically served its MSJ/MSA on May 5, 2025, 133 days before trial is set to commence on September 15, 2025. (See Code of Civil Procedure section 437c(a).) Filing GM's motion 133 days in advance was meant to ensure that GM's MSJ/MSA provided sufficient time before trial to have it heard with a full 83-day notice period (including two extra days for e-service per CCP § 1010.6(a)(3)(B)) before trial on September 15, 2025, and it accounted for it to be heard 30 days before the instant trial date, but for the Court's congested calendar. GM has a meritorious MSJ/A under *Rodriguez v. FCA US, LLC*, S274625. WL 4631069 (Oct. 31, 2024).

4. *Rodriguez v. FCA* provides GM the opportunity to pursue a meritorious MSJ/MSA and potentially save significant court resources by avoiding a costly trial that should not be going forward in the first place. *Rodriguez v. FCA US, LLC*, S274625. WL 4631069 (Oct. 31, 2024)

5. The California Court of Appeals has affirmatively held that a timely MSJ or MSA must be heard notwithstanding a trial Court's busy calendar. In Sentry Ins. Co. ("Sentry") the Defendant was still within the time limits specified by Code of Civil Procedure Section 437c for filing an MSJ or MSA. (See Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526, 528). Further, a trial court may not refuse to hear a summary judgment or adjudication motion filed within the time limits of section 437 C (Wells Fargo Bank v. Superior Court (1989)).

6. GM will suffer undue prejudice and irreparable harm if the instant application is not

granted because it will risk having an otherwise meritorious motion for summary judgment not heard by the court and may be forced to an unnecessary jury trial. Based on the facts of this case, GM has a meritorious MSJ/MSA.

7. Exigent circumstances exist to hear this application on an ex parte basis because there is insufficient time to request this relief through a noticed motion.

8. On June 6, 2025, at 4:11 P.M., my office provided ex parte notice of the instant application via email.

I declare under penalty of perjury of the laws of the State of California that the foregoing is true and correct. Executed on June 6, 2025.

DATED: June 6, 2025

ERSKINE LAW GROUP, PC

CAMERON MAJOR, Esq.
Attorney for Defendant,
GENERAL MOTORS LLC

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia St., Suite A, Orange, CA 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of Erskine Law Group for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On June 6, 2025, I served the foregoing document(s), bearing the title(s):

DEFENDANT GENERAL MOTORS LLC'S EX PARTE APPLICATION TO CONTINUE DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMARY ADJUDICATION; DECLARATION OF CAMERON MAJOR on the interested parties in the action as follows:

[X] by placing [ ] the **original** [X] a **true copy** thereof enclosed in a sealed envelope addressed as follows:

QUILL & ARROW, LLP
Kevin Y. Jacobson, Esq.
kjacobson@quillarrowlaw.com
Siyun Yang, Esq.
syang@quillarrowlaw.com
e-service@quillarrowlaw.com
10900 Wilshire Boulevard, Suite 300
Los Angeles, CA 90024

[ ] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[ ] (**BY PERSONAL SERVICE**) I caused to be delivered such envelope by hand to the office of the addressee.

[ ] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL**) I served the above mentioned document via electronic transmission per agreement of the parties.

[X] (**State**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[ ] (**Federal**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court, at whose direction this service is made.

Executed on January 16, 2025, at Orange, CA.

Signed: Jerry Obando
Jerry Obando

Exhibit A

Mary Arens McBride, Esq. (SBN: 282459)
Cameron Major, Esq (SBN: 325986)
Austin Abernathy, Esq. (SBN: 355456)
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Attorneys for Defendant,
GENERAL MOTORS LLC

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/05/2025
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

GREGORIO GARCIA, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware Limited Liability Company; and DOES 1 through 10, inclusive,

Defendants.

CASE NO.: CGC-24-614473

ASSIGNED TO:
Honorable Rochelle C. East
Department 206

GENERAL MOTORS LLC'S NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION; MEMORANDUM OF POINTS AND AUTHORITIES

[Filed Concurrently with Separate Statement of Undisputed Facts; Declaration of Cameron Major; Declaration of Bryan Jensen; Documentary Evidence in Support of Motion of General Motors LLC for Summary Judgment or, alternatively, for Summary Adjudication; and [Proposed] Order]

Date: July 29, 2025
Time: 9:00 AM
Dept.: 301

Filing Date: May 8, 2024
Trial Date: September 15, 2025

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on July 29, 2025, at 9:00 a.m., in Department 301 of the above-captioned court at the Civic Center Courthouse, 400 McAllister Street, San Francisco, CA 94102, General Motors LLC ("GM") will, and hereby does, move for summary judgment on all three causes of action in Plaintiff's Complaint. GM is entitled to a judgment in its favor on Counts I-III, because, as a matter of law, Plaintiff cannot pursue Song-Beverly claims against GM about a vehicle Plaintiff bought used and for which GM did not provide warranty coverage apart from the warranty it issued when the vehicle was delivered to its original owner(s).

Alternatively, this Court should grant GM summary adjudication on all the Song-Beverly claims in this case.

GM bases its motion on this Notice, the accompanying Memorandum of Points and Authorities, the Separate Statement of Undisputed Facts, the Declaration of Cameron Major, the Declaration of Bryan Jensen, the pleadings, records, and files in this matter, and such other oral or documentary evidence as may be presented at the hearing of this motion or otherwise.

Date: May 2, 2025

ERSKINE LAW, APC

CAMERON MAJOR, ESQ.
AUSTIN ABERNATHY, ESQ.
Attorneys for Defendant
GENERAL MOTORS LLC

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

GM is entitled to summary judgment, or in the alternative, summary adjudication, on Counts I-III in this Song-Beverly matter. Plaintiff did not buy the vehicle at issue new; Plaintiff bought it used with 56,665 miles. Plaintiff did not receive from GM any new or additional warranty coverage with this used vehicle purchase; Plaintiff received only the balance of coverage remaining under the warranty that GM issued in connection with the original delivery of the vehicle– more than 56,000 miles before Plaintiff bought the vehicle used. On these undisputed facts, Plaintiff's Song-Beverly claims (Counts I-III) fail as a matter of law under *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 and *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385.

II. UNDISPUTED FACTS

A. Plaintiff Did Not Buy a "New Motor Vehicle."

Plaintiff Gregorio Garcia ("Plaintiff") bought a model year 2019 GMC Sierra, VIN: 1GTU9BEDXKZ361894 ("Subject Vehicle" or "Sierra") on August 25, 2023. (Complaint ¶ 8; Separate Statement of Undisputed Facts ("UMF") ¶ 1; Declaration of Cameron Major ("Major Decl."), Exhibit A (Retail Installment Sale Contract).) Plaintiff did not buy the Sierra new; Plaintiff bought it used, with 56,665 miles on the odometer, from Price Ford of Turlock as seen below:

RETAIL INSTALLMENT SALE CONTRACT – SIMPLE FINANCE CHARGE (WITH ARBITRATION PROVISION)

Buyer Name and Address (Including County and Zip Code)	Co-Buyer Name and Address (Including County and Zip Code)	Seller-Creditor (Name and Address)
GREGORIO GARCIA 428 MONTAGUE CT MODESTO. CA 95351 STANISLAUS Cell: 209-241-0721 Email: garciagreg2186@att.net	Cell: Email:	PRICE FORD OF TURLOCK 5200 N GOLDEN STATE BLVD. TURLOCK, CA 95382

You, the Buyer (and Co-Buyer, if any), may buy the vehicle below for cash or on credit. By signing this contract, you choose to buy the vehicle on credit under the agreements on the front and back of this contract. You agree to pay the Seller - Creditor (sometimes "we" or "us" in this contract) the Amount Financed and Finance Charge in U.S. funds according to the payment schedule below. We will figure your finance charge on a daily basis. The Truth-In-Lending Disclosures below are part of this contract.

New/Used	Year	Make and Model	Odometer	Vehicle Identification Number	Primary Use For Which Purchased
USED	2019	GMC SIERRA 1500	56665	1GTU9BEDXKZ361894	Personal, family, or household unless otherwise indicated below ☐ business or commercial

(UMF ¶ 2; Major Decl. Ex. A (marking Plaintiff's Sierra as "USED").) GM was not a party to the transaction between Plaintiff and Price Ford of Turlock. (UMF ¶¶ 2-3; Major Decl. Ex. A (not listing GM as a "Buyer," "Co-Buyer" or "Dealer/Creditor"); Declaration of Bryan Jensen ("Jensen Decl."), ¶ 5.)

B. The Warranty

Plaintiff was not the Sierra's original owner. (UMF ¶ 4; Major Decl. Ex. A.) Gold Star Buick GMC delivered the Sierra to its original owner(s) on July 19, 2019, with 21 miles on its odometer.

Delivery Information

Delivery Service Agent: 257781
GOLD STAR BUICK GMC
1980 N DAVIS ROAD
SALINAS CA 93907-2533 8314448444

. Delivery Date: 07/19/2019
Delivery Type: 010---INDIVIDUAL
Delivery Odometer: 21

(UMF ¶ 8; Jensen Decl. Exhibit B (GM's "View Vehicle Delivery Information" report).)

In connection with that delivery to the Sierra's original owner(s), GM issued a New Vehicle Limited Warranty (the "Warranty") providing bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and powertrain coverage for the earlier of 60 months or 60,000 miles. (UMF ¶ 9; Jensen Decl. Exhibit C (2019 GMC Limited Warranty and Owner Assistance Information); *id.*, Exhibit D (GM's "View Vehicle Summary" report).) The Warranty's coverages began when Gold Star Buick GMC delivered the Sierra to its original owner(s) on July 19, 2019. (UMF ¶ 8; Jensen Decl. Ex. C at pp. 2 & 4; *id.*, Ex. D at "Applicable Warranties".)

Importantly, GM did ***not*** issue or provide any new or additional warranty coverage to Plaintiff or the vehicle when Plaintiff bought the Sierra used on August 25, 2023; Plaintiff received only the balance of coverage under the Warranty that GM issued back in July 2019. (UMF ¶ 8; Jensen Decl. Ex. D (listing November 19, 2021, as the "Start Date" for all applicable warranties for the Sierra)).

C. Plaintiff's Claims

On May 8, 2024, Plaintiff sued GM asserting three causes of action under Song-Beverly: (1) Breach of Express Warranty under Song-Beverly ("Count I"); (2) Breach of Implied Warranty under Song-Beverly ("Count II"); and (3) Violation of Civil Code section 1793.2(b) ("Count III"). (*See generally* Complaint.) Plaintiff has demanded a repurchase, plus a civil penalty, plus attorneys' fees and costs, but Plaintiff is not entitled to the relief requested because he cannot

pursue Song-Beverly claims against GM in connection with Plaintiff's purchase of a used vehicle for which GM did not provide new or additional warranty coverage.

III. APPLICABLE LEGAL STANDARD

Motions for summary judgment and summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code of Civ. Proc., § 437c(c) (emphasis added).) Such motions eliminate needless trials. (*Aguilar v. Atlantic Richfield Corp.* (2001) 25 Cal.4th 826, 843; *In re Kelly's Estate* (1960) 178 Cal.App.2d 24, 28.) Summary judgment is appropriate where, as here, Plaintiff lacks evidence on elements of each cause of action. (Code of Civ. Proc., § 437c(f)(1).)

To prevail, GM must show that Plaintiff cannot establish (or reasonably expect to establish) one or more elements of Counts I-III. (*State v. Allstate Ins. Co.* (2009) 45 Cal.4th 1008, 1017.) GM must negate only theories of liability alleged in the Complaint; it need not refute liability on a theoretical possibility not in the Complaint. (*Nativi v. Deutsche Bank Nat. Trust Co.* (2014) 223 Cal.App.4th 261, 290.) GM may satisfy its burden by presenting evidence that negates an element of Plaintiff's three causes of action or by presenting evidence that Plaintiff does not have and cannot reasonably obtain that evidence. (*Hypertouch, Inc. v. ValueClick, Inc.* (2011) 192 Cal.App.4th 805; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 889-890.)

Once GM has satisfied its burden, Plaintiff must present evidence to establish a genuine issue of material fact to withstand summary judgment or summary adjudication for GM. (Code of Civ. Proc 437c(p)(2); *Aguilar*, 25 Cal.4th at 849.) Plaintiff does not have that evidence.

IV. ARGUMENT

A. COUNTS I AND III FAIL BECAUSE PLAINTIFF CANNOT PURSUE BREACH OF EXPRESS WARRANTY CLAIMS UNDER SONG-BEVERLY ABOUT THIS SIERRA, WHICH PLAINTIFF DID NOT BUY AS A "NEW MOTOR VEHICLE" AND FOR WHICH PLAINTIFF DID NOT RECEIVE ANY NEW OR ADDITIONAL WARRANTY COVERAGE FROM GM IN CONNECTION WITH THIS USED VEHICLE PURCHASE.

Plaintiff's breach of express warranty claims (Counts I and III) fail as a matter of law. In October 2024, the California Supreme Court affirmed the Court of Appeal's decision in *Rodriguez*

v. FCA US, LLC, holding that a used vehicle purchaser ***cannot pursue*** breach of express warranty claims under Song-Beverly against the manufacturer because Song-Beverly's express warranty provisions apply only to "new motor vehicles," not a used vehicle acquired with some balance of its original warranty. That case – *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 – is controlling.

The essential facts in *Rodriguez* parallel those here. In that case, the plaintiffs bought a 2022 Dodge Ram 2500 from Pacific Auto Center, a used car dealer located in Fontana, CA, and at the time of sale, the vehicle was two years old, with more than 55,000 miles. (*See Rodriguez*, 17 Cal. 5th at 196.) At the time of sale, the three-year bumper-to-bumper warranty on the truck had expired, but the five-year powertrain warranty was still in effect. (*Id.*) At summary judgment, the plaintiffs claimed they were entitled to restitution under Song-Beverly, alleging that the refund-or-replace remedy applied to "used vehicles" and not just "new motor vehicles." (*Id.*) The trial court granted FCA's motion for summary judgment, and the Court of Appeal affirmed, holding that the phrase "other motor vehicle sold with a manufacturer's new car warranty" in the Song-Beverly statute does not cover the sale of "previously owned vehicles with some balance remaining on the manufacturer's express warranty." (*Id.* (*quoting Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 215).)

In affirming the Court of Appeal's decision, the California Supreme Court analyzed Song–Beverly's statutory framework in detail, expressly holding that Song-Beverly provides no relief for breach of express warranty claims brought by plaintiffs who purchased used vehicles from a retail seller, even where there is some balance remaining on the manufacturer's warranty. (*Rodriguez*, 17 Cal. 5th at 201.) In so holding, the Court determined that Song–Beverly provides relief specifically to purchasers of cars sold with a full warranty, but not to previously sold cars accompanied by some balance of the original warranty. (*Id.*) The Court noted that this conclusion follows directly from the text of Song–Beverly itself and that "the phrase 'other motor vehicle sold with a manufacturer's new car warranty' was not intended to cover any used car with an unexpired new car warranty." (*Id.*)

Like in *Rodriguez*, Plaintiff here did not receive any new or additional warranty coverage from GM; when Plaintiff bought the Sierra used from Price Ford of Turlock, Plaintiff received only

the unexpired balance of coverage remaining under the Warranty that GM issued when the vehicle was delivered new to the original owner(s), 49 months and more than 56,665 miles earlier. (*See* UMF, ¶¶ 1-8; Jensen Decl., ¶¶ 5-8; Doc. Evid. Exs. A-D.) GM was not a party to Plaintiff's purchase. (UMF ¶ 3; Major Decl. Ex. A.)

Consequently, Plaintiff is not entitled to remedies for breach of express warranty under the Song-Beverly Act, and this Court should grant summary judgment, or in the alternative, summary adjudication, in GM's favor on Plaintiff's first and third causes of action.

B. COUNT II FAILS BECAUSE PLAINTIFF CANNOT PURSUE BREACH OF IMPLIED WARRANTY CLAIMS AGAINST GM UNDER SONG-BEVERLY FOR A VEHICLE PLAINTIFF BOUGHT "USED."

Plaintiff's second cause of action (for breach of implied warranty) also fails as a matter of law. Under Song-Beverly, "every sale of consumer goods that are sold at retail in the state shall be accompanied by the manufacture's and the retail seller's implied warranty that the goods are merchantable." (Cal. Civ. Code, § 1792.) "'Implied warranty of merchantability' . . . means that the consumer goods meet each of the following: (1) [p]ass without objection in the trade under the contract description[;] (2) [a]re fit for the ordinary purpose for which such goods are used[;] (3) [a]re adequately contained, packaged, and labeled[;] and (4) [c]onform to the promises or affirmations of fact made on the container or label." (Cal. Civ. Code, § 1791.1(a).) "Consumer goods" are defined as "any ***new*** product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes . . . ." (Cal. Civ. Code, § 1791(a) (emphasis added).) ***The implied warranties under Song-Beverly***, however, ***do not apply to manufacturers with respect to the sale of used goods.*** (*See* Cal. Civ. Code, § 1795.5; *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 (analyzing Cal. Civ. Code, § 1795.5 and concluding: "It is evident from these provisions that only distributors or sellers of used goods—***not manufacturers of new goods***—have implied warranty obligations in the sale of used goods") (emphasis added).) Simply put, "only distributors and retail sellers, ***not manufacturers***, are liable for breach of implied warranties in the sale of a used car." (*Nunez*, 61 Cal.App.5th at 399 (emphasis added).)

Here, because Plaintiff bought the Sierra used, and has "no evidence that [GM] was a

distributor or retail seller of [the used Sierra] or in any way acted as such," the breach-of-implied-warranty claim fails as a matter of law. (*Nunez v. FCA US LLC*, *supra*, 61 Cal.App.5th at p. 399, internal citations omitted; UMF, ¶¶ 1-8; Jensen Decl., ¶¶ 4-8; Doc. Evid. Exs. A-D.) Accordingly, this Court should grant GM summary judgment, or in the alternative, summary adjudication, on Count II.

C. AT A MINIMUM, THIS COURT SHOULD GRANT SUMMARY ADJUDICATION ON THE SONG-BEVERLY CLAIMS.

Alternatively, if summary judgment is not granted for the reasons stated above, then this Court should find that Plaintiff's Song-Beverly claims (*i.e.* Counts I, II, and III) are summarily adjudicated under *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189 and *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385.

Like in *Rodriguez*, Plaintiff here did not receive any new or additional warranty coverage from GM; when Plaintiff bought the Sierra used from Victorville Chevrolet Cadillac, Plaintiff received only the unexpired balance of coverage remaining under the Warranty that GM issued when the vehicle was delivered new to the original owner – over 56,000 miles earlier. (*Rodriguez,* 17 Cal. 5th at 201.) Concurrently, under *Nunez,* "only distributors and retail sellers, not manufacturers, are liable for breach of implied warranties in the sale of a used car." (*Nunez*, 61 Cal. App. 5th at 399 (emphasis added)). Pursuant to *Rodriguez* and *Nunez*, which are the laws of the land, the Song-Beverly claims must be summarily adjudicated, as the breach of express warranty and breach of implied warranty claims have no merit.

V. CONCLUSION AND RELIEF REQUESTED

For all these reasons, GM respectfully requests that this Court grant GM summary judgment on Counts I-III of the Complaint and dismiss this case with prejudice. Alternatively, GM respectfully requests that this Court grant summary adjudication on all of Plaintiff's Song-Beverly claims (Counts I-III).

Dated: May 2, 2025

ERSKINE LAW, APC

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Attorneys for Defendant
GENERAL MOTORS LLC

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia St., Suite 1A, Orange, CA 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of ERSKINE LAW, APC for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On April 23, 2025, I served the foregoing document(s), bearing the title(s): **GENERAL MOTORS LLC'S NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION; MEMORANDUM OF POINTS AND AUTHORITIES** on the interested parties in the action as follows:

[X] by placing [] the **original** [X] a **true copy** thereof enclosed in a sealed envelope addressed as follows:

QUILL & ARROW, LLP
Kevin Y. Jacobson, Esq.
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Siyun Yang, Esq.
syang@quillarrowlaw..com
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Tele: (310) 933-4271
Fax: (310) 889-0645

[] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[] **(BY PERSONAL SERVICE**) I caused to be delivered such envelope by hand to the office of the addressee.

[] (**BY FACSIMILE**) The document stated herein was transmitted by facsimile transmission and the transmission was reported as complete and without error. A transmission report was properly issued by the transmitting facsimile machine and a copy of said transmission report is attached to the original proof of service indicating the time of transmission.

[] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL)** I served the above-mentioned document via electronic transmission per agreement of the parties.

[X] (**State**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[] (**Federal**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court; at whose direction this service is made.

Executed on April 23, 2025, at Orange, CA.

Signed: Jerry Obando
Jerry Obando, Paralegal